

Application for expungement under R.C. 2953.35

Court of Common Pleas, Franklin County, Ohio - General Division, Criminal

State of Ohio v. Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.  
Case 21CR001234.

The applicant requests expungement of the identified record under R.C. 2953.35, subject to the court's determination of the statutory requirements.

Applicant: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III. Other names: Alexandrina Katherine Montgomery Reyes. Date of birth: 1991-04-17.

Court of Common Pleas, Franklin County, Ohio; General Division, Criminal. Case 21CR001234. Assigned judge: Alex Example (synthetic assigned judge).

Address: 118 Maple Street, Apartment 1204, Rear Entrance, Columbus, Ohio 43215.  
Telephone: 614-555-0142. Email: jordan.reyes@example.org.

Offense: Former R.C. 2923.12(B)(1), failure to promptly notify. Offense date: 2021-01-10; arrest date: 2021-01-10; arresting agency: Columbus Division of Police.

Count 1: Former R.C. 2923.12(B)(1), failure to promptly notify; disposition: Convicted on amended sole count; sentence completed 2022-06-15; date: 2021-06-15.

Conviction date: 2021-06-15. Final discharge: 2022-06-15.

I seek expungement of the specified obsolete notification conviction to reduce employment barriers.

During a law-enforcement stop while carrying a concealed handgun under a valid Ohio concealed handgun license, I failed to promptly notify the officer that I was carrying the handgun. No other prohibited conduct is alleged.

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R.C. 2953.35(A)(3), former 2923.12(B)(1), before June 13, 2022; authorization under 2923.12(E)(2)

Synthetic license and incident report confirm a valid concealed-handgun license and conduct limited to former prompt-notification failure.

License evidence: issuer: Franklin County Sheriff; number: SYNTHETIC-CHL-2019-001234; validFrom: 2019-04-17; validThrough: 2024-04-17; suspendedOrRevoked: No.

One-count felony indictment amended before plea to the specified notification misdemeanor; common pleas court accepted the plea and entered judgment on the amended sole count. No companion count or differently disposed charge exists.

Other convictions: None. Pending criminal proceedings: No. Open warrants: No. Registration history: No. BCI record comparison completed: Yes. All same-incident charges inventoried: Yes.

Unpaid court costs only: Yes; court-cost balance: \$125. Indigency requested: No.

What is your full legal name, and have you used any other names? Answer: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III.

What is your date of birth? Answer: 1991-04-17.

Which Ohio court sentenced you, and in which county? Answer: Court of Common Pleas, Franklin County, Ohio.

What is the case number? Answer: 21CR001234.

Which Revised Code section were you convicted under, and on what date? Answer: Former R.C. 2923.12(B)(1), failure to promptly notify.

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What were you actually accused of doing? Answer: During a law-enforcement stop while carrying a concealed handgun under a valid Ohio concealed handgun license, I failed to promptly notify the officer that I was carrying the handgun. No other prohibited conduct is alleged..

Did you hold a concealed handgun licence at the time? Answer: Yes.

What every charge was that came out of the same incident, and how each one ended. Answer: count: 1; charge: Former R.C. 2923.12(B)(1), failure to promptly notify; disposition: Convicted on amended sole count; sentence completed 2022-06-15; date: 2021-06-15.

Do you need to ask the court to excuse the fifty dollar fee? Answer: No.

WHEREFORE, the applicant requests the relief stated above for the listed case and no other case.

Applicant signature: \_\_\_\_\_

Date: \_\_\_\_\_

Printed name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III